GL Assessment Guidance for Schools and Local Authorities regarding Freedom of Information Requests and Subject Access Requests

Updated: October 2024

Important Notice:

This document ***"GL Assessment Guidance for Schools and Local Authorities regarding Freedom of Information Requests and Subject Access Requests"*** offers general guidance to schools and local authorities on handling Freedom of Information (FOI) and Subject Access Requests (SAR). It is provided for **informational purposes only and should not be relied upon as legal advice**. For advice on specific legal matters or compliance with FOI and SAR requirements, please seek the assistance of a qualified legal professional.

Recommended Approach to follow when responding to a Freedom of Information (FOI) request or a Subject Access Request (SAR)

Guidance and legal framework regarding the correct handling of personal data

You (as the organisation who is responsible for administering the admissions tests) **and GL Assessment** have legal obligations under the ***Data Protection Act 2018*** regarding the correct handling of candidates' personal data with respect to admissions tests. The General Data Protection Regulation (GDPR) is the UK's implementation of the Data Protection Act. Everyone responsible for using this personal data has to follow strict rules called 'data protection principles'. They must make sure the information is: used fairly, lawfully and transparently.

GDPR defines the responsibilities related to particular roles regarding the correct handling of personal data and other sensitive data. For the purposes of your admissions test supply agreement with GL Assessment the following GDPR roles apply:

- **Data Controller** (this is your role): you are **the main decision-maker** – you exercise overall control over the purposes and means of the processing of personal data. You are responsible for ensuring your processing – including any processing carried out by a processor on your behalf – complies with the UK GDPR.
- **Data Processor** (this is GL Assessment's role): we act on behalf of, and only on the instructions of, the relevant controller. Under the terms of our contract with you, we have access to the personal data of your candidates solely for the purpose of the provision of admissions tests, the analysis of test responses and the generation of results in the form of age standardised scores. The scope of our role as a Data Processor prevents us from responding directly to any external requests for data that we hold in relation to your test without your approval of the specific request.

Please refer to the Information Commissioner's Office (ICO) website for more details: https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/controllers-and-processors/controllers-and-processors-a-guide/

There are also legal requirements regarding the correct handling of confidential and commercially sensitive information. In the case of GL Assessment's admissions tests, this covers areas such as test content and the bespoke processes that we use to generate results.

Responding to requests

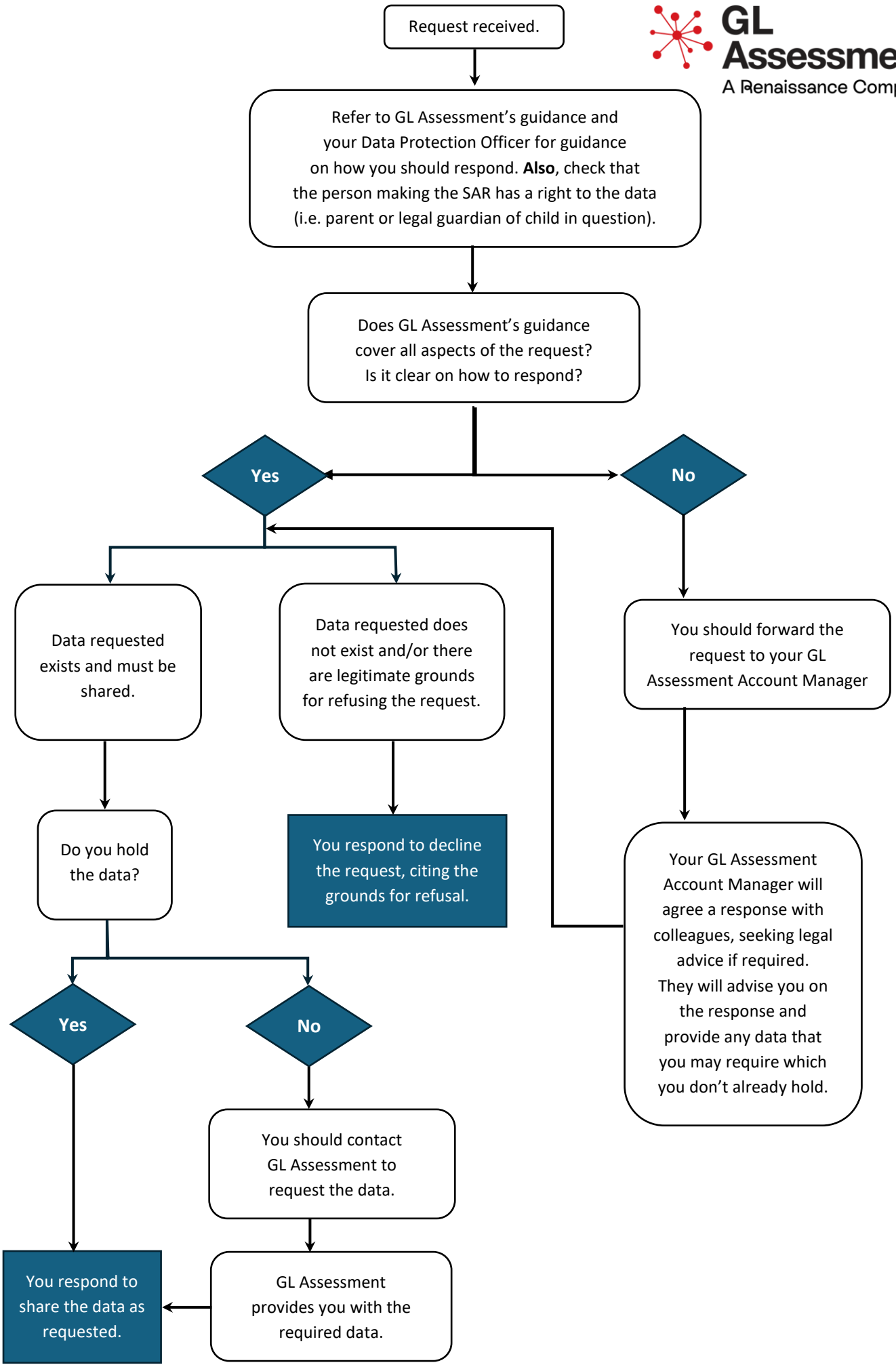
GL Assessment has drafted guidance to support you in determining how to respond to any requests that you may receive and in formulating an appropriate response.

You may also find the following flow chart helpful. The flow chart outlines the basic process that you should follow when deciding how to respond to a request for data related to your admissions test.

All requests must be responded to by you, the Data Controller. As a Data Processor, GL Assessment is unable to directly respond to any queries that we receive regarding the data for your tests and candidates. We will forward to you any requests that are sent directly to us. GL Assessment is committed to assisting you in retrieving any data stored on our systems in response to SARs and FOI requests, if it is data that we are obliged to share. The provision of the data is subject to certain restrictions.

Please note that we cannot proceed with retrieving the requested data until we receive explicit instructions from the school and a confirmation that they have verified the requester's authority to make this request.

Failure to adhere to obligations under Data Protection laws, including those related to the right of access, may result in the student or parent (Data Subject) lodging a complaint to the ICO (Information Commissioner's Office) which could lead to a fine and/or further corrective measures being imposed on the school / local authority (Data Controller).


Request received.
Refer to GL Assessment's guidance and your Data Protection Officer for guidance on how you should respond. **Also**, check that the person making the SAR has a right to the data (i.e. parent or legal guardian of child in question).
Does GL Assessment's guidance cover all aspects of the request? Is it clear on how to respond?
Yes
No
Data requested exists and must be shared.
Data requested does not exist and/or there are legitimate grounds for refusing the request.
You should forward the request to your GL Assessment Account Manager
Do you hold the data?
You respond to decline the request, citing the grounds for refusal.
Your GL Assessment Account Manager will agree a response with colleagues, seeking legal advice if required. They will advise you on the response and provide any data that you may require which you don't already hold.
Yes
No
You should contact GL Assessment to request the data.
You respond to share the data as requested.
GL Assessment provides you with the required data.

GL Assessment Guidance for Schools and LAs regarding Freedom of Information Requests and Subject Access Requests

This guidance has been prepared to assist you when you have received a Freedom of Information Request (FOI) and/or a Subject Access Request (SAR) that includes a specific request for disclosure of GL Assessment data and/or materials, such as exam papers and/or raw or standardised test results.

Given the nature of these materials and the high stakes use of the assessment, it is not unusual for individuals (e.g. parents, tutors) to request this information. However, such information is generally exempt from the requirement(s) to disclose, so we have prepared the guidance below to assist you with your response. This is not formal legal advice.

Firstly, it may not be clear whether the request is a FOI request or a SAR. It is therefore important to seek clarification from the individual before preparing a formal response. **FOI requests are made under the Freedom of Information Act 2000 (FoIA) and apply primarily to public and statutory bodies**; whereas **SARs are made under data protection legislation and relate specifically to personal data.**

It's also important to check that the individual has given all of the necessary information to enable you to prepare a response. The following websites provide guidance on what information should be given in order for an individual to make a compliant FOI or SAR:

FOI -https://www.gov.uk/make-a-freedom-of-information-request/how-to-make-an-foi-request

SAR - https://ico.org.uk/your-data-matters/your-right-of-access/

Disclosure of Information Held by GL Assessment

1. GL Assessment materials

It is important to GL Assessment that our materials (namely example and practice questions, test questions, full test papers, answer sheets and marking manuals) are not disclosed and remain confidential, wherever possible. This is because our materials constitute our Intellectual Property and disclosure of those materials to the general public would detrimentally impact the integrity of our tests.

In most cases, GL Assessment's information and materials cannot be disclosed without the risk of breaching data protection legislation or without disclosing sensitive or confidential commercial information. Specific statutory exemptions apply and can be used in responses to requests for information, and you should consult with your legal counsel to determine all the relevant exemptions which apply in each case. The following are some examples of Exemptions:

Exemptions under the Freedom of Information Act (FoIA):

FoIA defines two types of exemptions: **absolute exemptions** and **public interest exemptions**.

Absolute Exemptions:

If an exemption is absolute, the information does not need to be disclosed under the FoIA if it meets the criteria of that exemption. Examples include:

- **Section 40**: Personal information (absolute for subject access requests).
- **Section 41**: Information provided in confidence.
- **Section 44**: Information subject to legal prohibitions on disclosure.

Public Interest Exemptions:

For some exemptions, a public interest test must be applied. This means the requested information must be disclosed unless the public interest in withholding it outweighs the interest in releasing it. Key exemptions requiring a public interest test include:

- **Section 43**: Commercial interests (information that could prejudice commercial interests or trade secrets).

1.1 Exam Papers (e.g. question paper) - No disclosure

The exam papers (e.g. question papers) do not contain personal data so are not disclosable under SARs.

In respect of FOI requests, the FoIA sets out certain exemptions from the right to have information disclosed. One of the absolute exemptions is provided for in section 41 of the FoIA – Confidentiality. Another relevant exemption is section 43 – Commercial interests. We detail in point 2 why confidentiality and GL Assessment's commercial interests are applicable to its exams but, briefly, the exam papers themselves are confidential and must be kept secure at all times.

The details of the commercial terms between GL Assessment and the LA/School relating to the supply of exam papers are also commercially sensitive and the subject of binding contractual obligations of confidentiality e.g. a competitor can't make a request for pricing information.

1.2 Pupil's Test Script (e.g. completed answer sheets) - No disclosure



- A SAR may be made requesting disclosure of the answers given by a pupil in his or her exam scripts (i.e. completed answer sheets). While the information in exam scripts is classified as personal data, it is subject to a specific exemption under the Data Protection Act 2018 (Schedule 2 Part 1 (25)). It states that the General Data Protection Regulations (GDPR) do not apply to personal data consisting of information recorded by candidates during an exam. This decision applies even when the request relates to a sample of the pupil's handwriting, rather than access to the entire answer sheet.

2. Other Information Related to Test Results and Administration

2.1 Raw and Standardised Test Results (including standardisation tables)

2.1.1 SAR for a pupil's raw score – disclosure required

Where you receive a SAR requesting a pupil's raw score, you are obliged to release this information under the data protection legislation, provided you are satisfied that the request has lawfully been made by the child or on their behalf. If you receive a request by an individual who does not appear to be the child's parent or guardian, we recommend that further evidence is obtained to ensure that the person has the authority to request the personal information.

We suggest that unless specifically requested, total raw score only should be provided in response to the initial request, rather than the raw score for each paper or section of a paper. Furthermore, our interpretation of the ICO guidance is that you are not required to provide details of what the raw score is out of (i.e. the total possible score for each paper) or the scoring methodology.

We would be grateful if you could please inform us if you are asked for scoring information that goes beyond the total raw score or if it seems like you may be receiving a coordinated group of SARs - for example, if you receive an unusually large number of requests or they appear to be in a similar format (which suggests a template has been organised).

2.1.2 FoIA for raw and standardised scores (and other scoring-related information) – No disclosure

You may be asked to disclose information about: (i) how scores are calculated; (ii) raw and/or standardised test results across the entire cohort or a part of it; and/or (iii) pupils' birth months or allocated banding for each pupil that has been tested.

Disclosure would expose GL Assessment's sensitive commercial information as the standardisation tables contain GL Assessment's intellectual property (i.e. the weighting and methodology behind the standardisation). Therefore, disclosure under the FoIA is not required and should not be made as the 'commercial interests' (section 43(2)) exemption of the FoIA applies.

If you did disclose this information, it would prejudice GL Assessment's commercial interests and may also breach confidentiality terms agreed between us.

Why the raw scores and standardised scores should not be released

GL Assessment argues that disclosure of this data would prejudice its commercial interests for the following reasons:

- The test's efficacy relies on GL Assessment's unique method of calculating standardised scores. If this method were publicly disclosed, it would compromise GL Assessment's proprietary intellectual property and could provide competitors with an advantage, ultimately diminishing GL Assessment's commercial interests.

- GL Assessment expends a lot of effort preserving the integrity of its tests. This is done by carefully guarding the contents of tests and how they are constructed and assessed. A key reason for this is to keep the tests as tutor-proof as possible. A tutor's job is made far easier the more information is released on how tests are constructed and assessed. If the requested information was disclosed, it would allow tutors/teachers to deliver more targeted tutoring, undermining the core purpose of the test.

An illustrative example of this position is the decision made by the Information Commissioner in reference FS50566015, which involved a similar request directed at Durham University concerning tests provided through the Centre for Evaluation and Monitoring (CEM). In that case, the Information Commissioner determined that there was a significant risk of prejudice and deemed the potential harm from disclosing the information to be sufficiently acute, leading to the conclusion that the information should remain undisclosed.

In addition, there is a risk of breaching data protection legislation because there is a risk of individual pupils being identified, even if provided in an anonymous format. A school, as data controllers of pupil personal data, is not permitted under section 45(4)(e) of the Data Protection Act 2018, to provide data if another individual can be identified from the information disclosed. Other children, their raw scores and standardised results could be deduced from the standardisation table.

2.2. Candidate's Personal Information

Personal information related to test administration may include basic demographic data such as name, date of birth, and gender. It also encompasses candidate unique ID numbers. This information is typically considered personal data and is subject to data protection regulations. When responding to a SAR, care should be taken to ensure that only the personal information of the requesting individual is disclosed, and that any information relating to other individuals is appropriately redacted or withheld.

2.3. Individual Test Administration Detail

Individual test administration details include the specific date of test administration for the individual candidate. It may also encompass any recorded accommodations or special arrangements made for the individual candidate during the test. This information is generally considered part of the candidate's personal data and may be disclosable under a SAR, provided it does not reveal confidential information about GL Assessment's test administration procedures or compromise the integrity of future tests.

2.4. Individual Digital Platform Data (if applicable)

In cases where tests are administered digitally (e.g. the Adaptive Admissions Test), individual digital platform data may be collected. This can include login records for online testing and information about the time spent by the individual on different sections of digital tests. This data may be considered personal data of the candidate, and a request for access could be granted under a valid Subject Access Request.

2.5. Examiner comments (e.g. on the exam script or a separate marking sheet) - Partial disclosure

Unlike the exemption from disclosure in point 1.2, personal data about an individual processed for the purposes of determining the results of the exam are not exempt and must be disclosed if you receive a SAR. This personal data includes any comments made by an examiner on a pupil's performance in an examination (whether recorded on the exam script or a separate marking sheet), or to the details of the marks awarded. If a Subject Access Request is made (in writing) regarding these examiner comments, the examiner comments (if any exist) must be given by the earlier of either: (i) five months from the date of the request; or (ii) 40 days after the examination marks are released.

However, it is still important to not disclose GL Assessment's materials such as the exam papers and exam answers without the materials being correctly redacted. We ask that you contact us if you receive this request so that we can help.

N.B. Given the format of GL Assessment's admissions tests, which are typically automatically marked, marking completed by GL Assessment is unlikely to include any examiner comments.

Handling Press Inquiries

Schools may receive approaches for comment from the press in relation to their 11+ test. These could include requests for interviews with local papers or radio stations, or for written responses to specific questions raised by parents or other stakeholders.

GL Assessment has an experienced communications team available to support schools with these types of press queries. We ask that schools always speak to us prior to sharing any information with the press and also share any press statements with us before issuing them.

Similarly, GL Assessment will always inform schools if we receive any press enquiries relating to their test, and we will not issue a press response unless we have agreed on the response and our approach together.

When any such issue arises, it is crucial that we agree on consistent messaging across our respective organisations.

If a school receives any press enquiries, they should contact their Account Manager or email us at admissions@gl-assessment.co.uk

For further information or advice on any requests you receive, please contact us at admissions@gl-assessment.co.uk.

Example case studies for responding to FOIs and SARs

This section provides fictional examples of Freedom of Information (FOI) and Subject Access Requests (SARs) that schools or local authorities might encounter. These case studies are illustrative and based on real requests received by schools or GL Assessment. They are intended to offer guidance on handling similar situations, but schools should make independent decisions and seek legal or professional advice as needed. This document is for informational purposes only and does not aim to influence specific actions.

Case Study 1: Issue during exam administration

In this example initial contact was made with GL Assessment.

From: jane.doe@email.co.uk
Sent: Monday, September 15, 2024 7:15 PM
To: admissions@gl-assessment.co.uk
Subject: Admissions Test at 13th Sep at Example School

Dear GL Assessment,

I am contacting you regarding the following complaint.

My son John DOE sat the Example School Admissions Assessment Tests on Saturday 13th Sep at 10:00am at Example School.

The reference for the test provided by Example School is 12345/ESAA_TESTS/2024.

I am aware that GL Assessment is the Verbal Reasoning and Mathematics test provider for Example School and unfortunately there was a problem during the first test that we believe has affected our son's performance during both tests.

The problem resulted from the fact that children were told that they weren't allowed to record any rough working on the test paper. Our son had prepared for the test by recording rough working on his practice test papers, so he was upset not to be able to do the same in his actual test. He felt unable to concentrate properly on answering the questions as a result. Children in other schools were told that they could record rough working on the test, which caused further confusion and concern. I believe that my son has not demonstrated his true ability on the tests as a result of this confusion. I later found out that children who took the same paper at Example School were allowed to record rough working on the test booklet for both papers.

Since the date of the test we have been in email correspondence with the Headmistress for Example School. The aim of that correspondence was primarily to see our son's Question Booklet and Answer Sheet to satisfy ourselves that his performance was not affected in the recording of his answers but we were informed that due to your very strict copyright it is not possible for external people to see the question or answer booklet.

Could you please inform us:

- Have you been notified of this problem with the examination at Example School?

- What guidance is provided to test administrators about what is allowed during the test?
- What analysis takes place to assess the impact of such an error on candidates?
- What steps are being taken to address the imbalance between the affected candidates and the non-affected candidates?

Our aim is to ensure that our son was not treated less favourably to others who took the test on the same day and did not face the same issue, and to be satisfied that his performance on the day was not adversely affected.

The error in John's exam has caused unnecessary anxiety to our family so a meaningful response would be appreciated.

Kind Regards,

Jane

Response:

1 The headmistress at Example School was correct to advise that John Doe's test paper and answer sheet could not be shared on confidentiality grounds.

2 GL Assessment forwarded the correspondence to Example School to make them aware. They also replied to the parent to advise that GL Assessment was unable to reply directly to requests for information but were working with the school to support them in resolving this matter.

3 Example School had separately contacted GL Assessment to advise that the person administering Test 1 had not fully understood the details in the Administrator's Manual prior to the test, so made an error which was corrected for the second test. They asked for GL Assessment's advice on whether any adjustments should be made to test scores for pupils in Example School. Following discussion, additional analysis was commissioned by GL Assessment to compare performance between Tests 1 and 2 in Example School with performance in other schools. No significant differences were found in performance across the different schools.

4 The school advised the parent that the results were analysed and nothing untoward was found.

Case Study 2: Request for details of how SAS is calculated

In this example initial contact was made with the Admissions Officer at the local authority responsible for the admissions test.

From: joe.bloggs@email.co.uk
Sent: Tuesday, October 29, 2024 3:31 PM

To: admissions@samplecouncil.org.uk
Subject: Admissions Test at 13th Sep at Example School

Dear Admissions Officer,

I am writing to request the personal information about my daughter's test results that she is entitled to receive under data protection law.

Details of the personal information I would like:

My daughter (candidate no: 98765) received her results on 26 October 2024.

In the information provided with her result you stated that the Age Standardised Score is based on:

1. The child's age,
2. The number of correct answers, and
3. The level of difficulty of the paper.

Firstly, I would like to understand **how her score was adjusted for the level of difficulty of the paper.**

I would also like to better understand **the impact of the child's age**. I therefore request details of the formula used to calculate the Age Standardised Scores and the raw scores where the Total Standardised Age Score is 100 (i.e. the average) for each birth month from September 2013 to August 2014. Please can you provide these for each test and the overall results.

Kind Regards,

Joe

Response:

1 The Admissions Officer believed that the information requested was not actually personal information. However, she understood the disclosure of the requested information was not required since it related to GL Assessment's proprietary, and commercially sensitive information.

2 However, she felt that providing some more general information might help to reassure the parent. Following consultation with GL Assessment, she shared the link to the following video, which was created by GL Assessment to explain age standardised scores: https://www.youtube.com/watch?v=cqIDcmTkFVs

Case Study 3: Request for raw scores and standardised scores

In this example initial contact was made with GL Assessment.

From: jane.smith@email.co.uk
Sent: Monday, October 28, 2024 11;11 AM
To: admissions@gl-assessment.co.uk
Subject: Admissions Test for ElevenPlus High School

Dear GL Assessment,

I'm emailing as a FOI to request **the raw scores and standardised scores for the 11+ test** held for **ElevenPlus High School** for my son.

On the raw results, I would like a **breakdown of the scores for the 4 areas tested on VR, NVR, Maths and English.**

I have contacted the local authority's admissions team and they have stated I will need to contact GL with my FOI request.

Kind Regards,

Jane

Response:

1 GL Assessment replied to the parent that they are unable to respond to requests from parents and that all parental requests should be directed to the School/LA.

2 GL Assessment forwarded the correspondence to ElevenPlus High School, and advised that, as the Data Processor, GL Assessment is not permitted to respond directly to this type of request and that it is the responsibility of the school as the Data Controller to respond, seeking input/advice from GL Assessment as required.

3 In this instance, although the school did not hold this level of information, GL Assessment did hold it. Therefore, the school was obliged to request this from GL Assessment so that it could be shared as required for a subject access request.